

Michelle "MJ" Becker

From: Carlo Galotto <carlo@aitoh.com>
Sent: Friday, February 16, 2024 1:59 AM
To: Judges
Subject: RE: Docket No. 1999(F) - WCG Group, LLC DBA Aitoh Co., v. Chris Phillips and Paul Knott

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Good morning,

You are receiving this e-mail in regard to the "Notice of Reassignment to Administrative Law Judge" emailed to us on February 7th and in particular where in the Notice is stated "**Respondent Paul Knott filed a motion to dismiss. Complainant should respond to the motion to dismiss by February 21, 2024**".

Since we do not have a law degree and our main activity is not to file claims and we do not have either a firm of attorneys working for us as in the case of Mr. Paul Knot, nor we were requested to have an attorney to file this Claim, considering that we are taking very seriously your recommendations to read and get familiar with the procedure and we are carefully reading the Rules of Practice and Procedure applicable, please let us humbly ask:

- a) While § 502.312 "Answer to complaint" of Subpart T defines the content of the answer of the Respondent that has refused to consent to the claim being informally adjudicated pursuant to the Subpart S, on the contrary the §502.313 Subpart T does not seem to clarify what should be the content of our reply memorandum to the motion to dismiss. May we add new discoveries or just confirm the original alleges?
- b) If the fact that the Claim has already been re-assigned for formal procedure Subpart T implies that it can't be at the same time assigned for informal adjudication for both Respondents, then it looks like our "Answer" to the motion to dismiss will be meaningless. If our "Answer", the content of which is not clear, is just a formality that has in any case no legal consequence on the proceedings, we would greatly appreciate to be advised.
- c) Also, it is not clear to us, if the motion to dismiss from the Attorney representing Mr. Paul Knot, is a request to dismiss b.1) the Respondent Paul Knott from the Complaint or, to dismiss b.2) the whole Claim and how our "Answer" to the motion will affect the respondent Mr. Chris Phillips that, as far as we have understood, has not refused the informal procedure.

Finally, in view of the fact we are not attorneys and we are new with the legal terminology and procedures, while ensuring we are doing our best to understand and follow the Commission's rules of practice and procedure, we kindly ask to consider the possibility to grant us extra time to formalize a proper and formal "Answer" to the motion to dismiss.

Thank you.
Sincerely,

Carlo Galotto
Accounting

WCG Group, LLC dba AITOH Co.